

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS,
LLC, a Foreign Limited Liability Company,

Plaintiff,

vs.

Case No. 2015-CC-

DAVID KNOX and UNKNOWN
TENANT(s),

Defendants.

**COMPLAINT SEEKING EVICTION, DAMAGES
AND OTHER RELIEF**

Plaintiff, COLONIAL MANOR MHC HOLDINGS, LLC, sues the Defendants, DAVID KNOX and UNKNOWN TENANT(s), in possession of certain premises more fully described below, and alleges:

COUNT I
ACTION FOR POSSESSION

1. This is an action for removal of a mobile home park lot tenant and possession of the real property in Manatee County, Florida, as authorized by Section 723.061(1)(a) of Florida Statutes.
2. Plaintiff is a Foreign Limited Liability Company owning and operating a mobile home park located in Manatee County, Florida.
3. Defendant, DAVID KNOX, is a natural person, whom at times relevant owned and owns a mobile home located at 900 - 9th Avenue East, Palmetto, on Lot #192, Manatee County, Florida.

4. Defendant, UNKNOWN TENANT(s), may reside on real property at 900 - 9th Avenue East, Lot #192, Palmetto, Manatee County, Florida, 34221, but if so, does without the consent of the Plaintiff.

5. Plaintiff owns, in fee, the real property located at 900 - 9th Avenue East, Palmetto, Florida, 34221, known as COLONIAL MOBILE MANOR.

6. Plaintiff, as landlord, leased to Defendant, DAVID KNOX, Lot #192 of the above stated mobile home park at a monthly rental fee of \$435.00 for an ongoing period of one (1) year, pursuant to Florida Statute §723.031. The Defendant owes lot rent for the months of August and September, 2015 in the sum of \$870.00, plus \$90.00 for late rent fees (\$45.00 per month), pursuant to the rental agreement. In addition Defendant is in arrears on the water/sewer bills in the amount of \$171.16, late fees for late water and sewer bills (\$35.00 per month) in the amount of \$175.00 and a bounced check fee of \$40.00.

7. Defendant, DAVID KNOX, is in default of the rental agreement with Plaintiff by failure to pay the total sum of \$1,346.16 as of September 1, 2015.

8. On September 1, 2015, Plaintiff served on Defendants, DAVID KNOX and UNKNOWN TENANT(s), via certified mail and posting, a Five Day Notice of Termination of Tenancy for Nonpayment of Rent. A copy of this Notice is attached and marked Plaintiff's Exhibit A accompanied by a copy of the certified mail receipt for the same.

9. Defendants, DAVID KNOX and UNKNOWN TENANT(s), have failed to make the payment of past due rent, water/sewer bills, late fees and a bounced check fee within five (5) days of delivery of the Notice and continues to refuse to pay the amounts due and owing to Plaintiff.

10. UNKNOWN(s) TENANTS, may reside or have an interest in Lot #192 of

COLONIAL MOBILE MANOR but said residence is without the knowledge or approval of the Plaintiff and said person(s) have no right to reside at said location.

11. Pursuant to the lease and Section 723.068 of Florida Statutes, Plaintiff is entitled to an award of attorney fees.

12. Plaintiff is entitled to the summary procedure of Section 51.011 of the Florida Statutes.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment for possession of the premises together with costs and reasonable attorney's fees against Defendants, DAVID KNOX and UNKNOWN TENANT(s), and such other and further relief as the Court may deem proper.

COUNT II
ACTION FOR DAMAGES (RENTAL)

13. This is an action seeking less than \$5,000.00 excluding costs, interest and attorney fees.

14. Plaintiff re-alleges the facts contained within paragraphs 1 through 12 as though fully set forth herein.

15. Defendant, DAVID KNOX, owes the Plaintiff the sum of \$1,346.16 plus interest, costs and a reasonable attorney fee.

WHEREFORE, Plaintiff requests this Honorable Court enter a judgment against Defendant, DAVID KNOX, for damages, costs, and a reasonable attorney's fee.

COUNT III
ACTION TO ENFORCE LANDLORD'S LIEN

16. This is an action seeking to enforce a landlord's lien pursuant to Sections 713.691 and 713.77 of Florida Statutes.

17. The Plaintiff re-alleges the facts contained within paragraphs 1 through 12 and 15 as though fully set forth herein.

18. Defendant, DAVID KNOX, is the registered owner of the 1984 (unknown make) double wide mobile home identified as Vehicle Identification No. 23650327AT, Title No. 004189117 and Vehicle Identification No. 23650327BT, Title No. 0041885602, which is located on Lot #192 of the property leased by the Plaintiff to the Defendant.

19. The Plaintiff is entitled to a landlord's lien against the mobile home to enforce its judgment against Defendants for unpaid rent, utility bills, late fees, court costs and a reasonable attorney fee for the pursuit of this eviction and for related relief.

20. The Plaintiff claims entitlement to enforce its lien against the mobile home by judicial sale pursuant to Florida Statute §45.031.

21. Upon Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's judgment against the Defendants, DAVID KNOX and UNKNOWN TENANT(s), it will have perfected its landlord lien against the personal property of Defendants, namely a double wide mobile home identified as a 1984 (unknown make) DOUBLE WIDE MOBILE HOME, Vehicle Identification No. 23650327AT, Title No. 004189117 and Vehicle Identification No. 23650327BT, Title No. 0041885602, to which Plaintiff is entitled to sell to satisfy its judgment against Defendants.

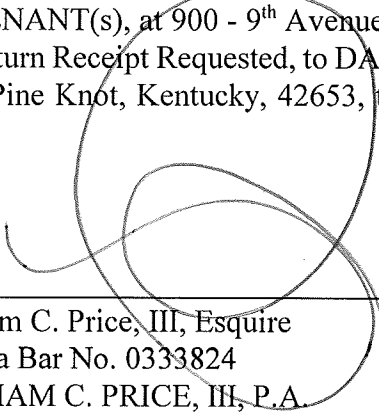
22. The Plaintiff is entitled to credit toward the purchase of the double wide mobile home in the sum representing all of Plaintiff's judgment against the Defendant, DAVID KNOX, all costs of this proceeding and reasonable attorney's fees.

WHEREFORE, the Plaintiff prays this Honorable Court enter an order, ordering a judicial

sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, and to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Complaint Seeking Eviction, Damages and Other Relief has been furnished to a private process server for service upon the Defendants, DAVID KNOX and UNKNOWN TENANT(s), at 900 - 9th Avenue East, Lot #192, Palmetto, Florida, 34221, and via Certified Mail, Return Receipt Requested, to DAVID KNOX and UNKNOWN TENANT(s), Post Office Box 266, Pine Knot, Kentucky, 42653, this 13th day of September, 2015.



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